

26PR00149 Estate of Marilyn Sylvestri

County: sonoma

Division: Probate

Hearing date: 2026-07-24

Motion: Probate of Will

Source URL: <https://sonoma.courts.ca.gov/online-services/tentative-rulings/probate-tentative-rulings/estates-other-probate-tentative-rulings>

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Estate of Marilyn Sylvestri

26PR00149

Probate of Will

Tentative Ruling: NO APPEARANCES REQUIRED. Petition is DENIED without prejudice. Petitioner was ordered to complete code compliant publication but has failed to file proper Proof of Publication.

The denial is pursuant to Local Rule 6.2.C.2.c, which directs that generally no more than two continuances will be allowed. This is the fourth hearing on the petition.

The Court has reviewed the Proof of Publication filed 7/17/26. The first Affidavit of Publication for the 7/24/26 hearing lists the first date of publication as 6/5/26; However, the Court did not assign the 7/24/26 hearing date until the 6/18/26 hearing which was after publication occurred. The second Affidavit of Publication lists only two dates of Publication which does not comply with Probate Code section 8121.